

Critically, “[a]t the trial, the court shall determine whether the plaintiff has the right to partition.” (CCP §872.710 (a).)

If a plaintiff has the right to partition, then the court “shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.” (CCP §872.720(a).) This interlocutory judgment is an appealable determination of the parties’ respective rights and the method of partition. (*Grant v. Murphy*, supra, 116 Cal. at 431-32.) The entry of this judgment is a mandatory prerequisite before the court can proceed to the second stage of ordering a sale or division. (*Summers v. Superior Court*, supra, 24 Cal.App.5th at 143 [holding that a court may not order the manner of partition before it determines the ownership interests].)

The Partition of Real Property Act (the “Act”) supplements the existing partition statutes. (CCP §874.311 et seq.) The Act applies to partition actions filed on or after January 1, 2023, involving tenancy-in-common property where no binding partition agreement exists. (CCP §§874.311(b), (c).) Therefore, the PRPA governs this action as it was filed after January 1, 2023, the parties are tenants in common, and no binding partition agreement exists. (CCP §874.311.)

The Act supplements, but does not override, the mandatory two-step procedural requirements of a partition action, including the necessity of an interlocutory judgment. (CCP §874.313 [stating the Act supplements Title 10.5 and controls only over inconsistent provisions].) Therefore, the first step of entry of an interlocutory judgment is still required before any form of partition can be ordered.

Here, the evidence and the parties are in agreement that they each own 50% of the property as co tenants. Accordingly, the court grants the motion and enters an interlocutory judgment determining that Plaintiff and Defendant both own 50% of the property as co-tenants and entitled to partition, the manner of which is not before the court in the instant motion.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2507350	D'SOL VS SELECT PORTFOLIO SERVICING, INC.	MOTION FOR ORDER TO DEEM MATTERS ADMITTED SET NO. ONE, PROPOUNDED TO DEFENDANT SELECT PORTFOLIO SERVICING, INC. (122 REQUESTS) AND DEFENDANT WILMINGTON SAVINGS FUND SOCIETY, FSB (120 REQUESTS). BY LUNA D'SOL

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

Plaintiff, a homeowner, has brought this action for wrongful foreclosure of her residential property against the foreclosing beneficiary and its servicer, and the trustee under the deed of trust. Plaintiff is pro per. The crux of Plaintiff’s Complaint is that, despite wiring of funds sufficient to cure her default on her mortgage payment and fully reinstate her loan, Defendants nevertheless completed a foreclosure sale of her property and caused a trustee’s deed upon sale to be recorded. As a result of Defendants’ alleged misconduct, Plaintiff alleges that the wrongfully recorded trustee’s deed upon sale clouded title of her property and that she sustained damages in the form of loss of her home, adverse credit rating, and emotional distress.

Plaintiff brings the instant motion for an order to deem requests for admissions admitted. Plaintiff served Requests for Admission on Select Portfolio Servicing, Inc. and Wilmington Savings Fund Society, FSB, dba Christiana Trust on January 23, 2026. Plaintiff agreed to extend Defendants' deadline to respond to the RFAs until March 24, 2026. On March 24, 2026, Defendants each served their responses. The responses consisted of objections to each of the RFAs.

Plaintiff argues since the responses only contained an attorney signature and did not include a party verification, they were tantamount to no response at all. Thus, Plaintiff now asks the court for an order deeming the requests for admissions admitted.

Defendants oppose the motion. Defendants argue Defendants timely served attorney-signed responses that included objections to every request. Defendants argue the motion is procedurally improper as it seeks a single deemed-admitted order against two separate defendants. Defendants argue Plaintiff's exclusive remedy is a motion to compel further responses under CCP §2033.290.

Request for Admission(s)

When responding to a Request for Admission, the responding party may serve objections to a particular request. (CCP §2033.210(b).) The party to whom RFAs were directed must sign the response under oath. The party's attorney must also sign a response that contains an objection. If the response consists entirely of objections, then only the attorney's signature is necessary. (CCP §2033.240(a), (c).) If the response contains both answers and objections, there is no need to verify that portion containing objections. (*Food 4 Less Supermarkets, Inc. v. Sup. Ct. (Fletcher)* (1995) 40 Cal.App.4th 651, 657.)

A "hybrid" response is one that contains objections and other statements. "The verification requirement for a response which contains matter other than objections operates to support the *other* statements in the response. The objections themselves do not require a verification in order to be preserved." (*Blue Ridge Ins. Co. v. Superior Court* (1988) 202 Cal.App.3d 339, 344 (emphasis in original).)

Failure to timely respond to RFAs does not automatically result in deemed admissions. Rather, the propounder of the RFAs must "move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction. (CCP §2033.280(b).) If timely responses have been served but the requesting party believes those responses are deficient, the remedy is a motion to compel further answers under CCP §2033.290.

Here, Defendants served timely hybrid responses that contained both objections and responses claiming Defendants were unable to admit or deny the requests. The responses were signed by Defendants' attorney but no party verifications were provided. Since the responses were timely and contained objections, the objections have been preserved. Contrary to Plaintiff's argument, Defendants have served a valid response in the form of objections. This is not a proper basis on which to bring a motion to deem the requests for admissions admitted.

Furthermore, Defendants properly argue the motion is procedurally improper. The motion seeks an order deeming admissions against two separate defendants for different sets of discovery served on those defendants. CCP §2033.280(b) permits a party that served requests for admissions to file a motion deeming matters admitted against "a party to whom requests for admissions are directed." There is no provision in the Code of Civil Procedure that permits a moving party to bring one motion against two defendants who were served with separate discovery requests. Since the motion must be denied on the merits, this procedural issue is not dispositive.